

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 9/23/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the Court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel/parties intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2026-01581477 Gross vs. Gross	On the Court's own motion, this matter is being continued to 9/30/2026 at 8:30 AM in Department C61. The Court will not accept any further filings regarding the Anti-Slap Motion by either party. The Court is to provide notice of the new court date.
2	30-2026-01544463 John Gylstrand, successor Trustee of the Gylstrand Family Trust U.D.T. dated 7- 7-89 vs. Lehman	The Court has read and considered the Defendant's Motion to Withhold Entry, Reconsider and Correct the Minute-Order Ruling and Set Aside Proposed Judgment Before Entry (ROA 139), Memorandum of Points and Authorities (ROA 131), Declaration in Support (ROA 133), Proof of Service (ROA 135), and Plaintiff's Opposition. The Court takes Judicial Notice of the 5/27/2026 Minute Order (ROA 112), the Stipulation for Entry of Judgment (ROA 113), the Court's Electronic Recording of the 5/27/2026 Hearing, the Complaint (ROA 2), Proof of Service of Summons (ROA 8), Proof of Service of Summons & Complaint-Unnamed Occupants (ROA 10), and the 9/2/2026 Minute Order (ROA 129). California Code of Civil Procedure §1008(a) states, "When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by

		the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” The September 2, 2026, hearing was essentially a hearing in which the Plaintiff asked the Court to enforce the terms of the Stipulation for Entry of Judgment the parties entered into on 5/27/2026. On September 2, 2026, Mr. Lehman was present, presented evidence and argument to the Court, and after the ruling indicated to the Court that he would seek an appeal because he disagreed with the Court’s ruling. Plaintiff argues that the Defendant’s motion is untimely because it was filed on 9/15/2026, which is more than 10 days after the September 2, 2026 hearing date. First, the Defendant did not file his documents with the Court until September 16, 2026, which is 14 calendar days after the hearing date, but CCP §1008 specifically states “within 10 days after service upon the party of written notice of entry of the order” and although Mr. Lehman received oral notice of the Court’s ruling the day of the hearing, there is no documentation provided to this Court that Mr. Lehman received written notice of the Court’s ruling. Therefore, the Motion is not untimely. Defendant fails to establish new or different facts, circumstances, or law which would support reconsideration of this matter. The only exhibit which was not previously presented in the Defendant’s case was Exhibit I, “City of Los Angeles Renter Protections Notice” which is not applicable to a property in Orange County, California, and the applicability in general is in question, as the property in the Complaint is listed as a commercial property. As noted by the Court, Unit C’s lease agreement stated it was to be used only as office space, and using it as a living space violated the City of Huntington Beach Code. Therefore, the Court DENIES the Defendant’s Motion for failing to establish “new or different facts, circumstances, or law” pursuant to California Code of Civil Procedure §1008. Plaintiff is ordered to provide notice of the Court’s ruling.
3	30-2026-01580667 Sarai vs. Sadeghi	The Court has read and considered the Plaintiff’s Motion for Reconsideration to Set Aside Dismiss With Prejudice (ROA 58), Proof of Service (ROA 64) and Defendant’s Opposition (ROA 62). The Court takes Judicial Notice of the 8/17/2026 Minute Order (ROA 54). Plaintiff seeks a Motion for Reconsideration but fails to establish any legal authority for such motion and fails to comply with the filing requirements under the California Code of Civil Procedure and the California Rules of Court. Additionally, the Plaintiff fails to state what new or different facts, circumstances, or law support the motion for reconsideration. On 8/17/2026,